

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

Appellate No. SYN-CA4-26-CV-4103 · City Docketing Statement

Filed February 9, 2026

Appellant City of Norvale submits this docketing statement concerning an interlocutory civil appeal. The district matter is *Piedmont Booksellers Guild v. City of Norvale*, District of South Carolina Case No. SYN-DSC-26-CV-0107. The Guild is the plaintiff and appellee; the City is the defendant and appellant. No additional party has intervened or been substituted.

The asserted jurisdictional basis is 28 U.S.C. § 1292(a)(1). On January 23, 2026, the district court entered an order granting a preliminary injunction that restrains enforcement of the City's Paid-Speaker Permit Ordinance against the Guild's announced 2026 Cedar Commons fairs. An interlocutory order granting an injunction is appealable under that provision. The City filed its notice on January 29, six days after entry of the challenged order.

No final judgment has been entered. The complaint seeks declaratory, preliminary, and permanent relief under the First and Fourteenth Amendments and 42 U.S.C. § 1983, and those merits claims remain pending in the district court. This Court's immediate review concerns the grant and terms of preliminary relief. The City also identifies the January 28 district stay denial and the February 6 appellate stay denial as related procedural rulings, not independent final adjudications of liability.

Nature of the Dispute

The Guild organizes free-to-attend recurring Saturday book fairs at Cedar Commons. Its historical events generally include eighteen to twenty-eight booksellers and four to seven authors receiving modest honoraria. Author readings and question sessions are open without admission. The record reports no violence associated with the fairs, two minor medical responses, and recurring but ordinary congestion during unloading and near pedestrian paths.

Ordinance N-2025-18 applies to recurring public events that feature compensated scheduled speakers. It requires a separate application at least forty-five days before each event, the name, brief topic, and time of every paid speaker, a \$240 base charge, and \$45 for each listed paid presenter. Officials may deny or condition an application for documented crowd, traffic, or municipal-resource risks and must explain the action in writing. A vendor who sells goods without giving a scheduled address is outside the added paid-speaker provisions.

The City asserts interests in advance coordination of audience concentration, transit interaction, loading, emergency access, sanitation, and personnel. The Guild contends that compensation does not measure those needs and that early identity commitments, uncertain late-change review, and cumulative fees chill small literary programs. Both parties agree the text applies without regard to viewpoint. They disagree over constitutional tailoring and the precision needed for interim administration.

The six proposed 2026 dates are February 14, April 11, June 13, August 8, October 10, and December 12. Their recurrence prevents the dispute from depending on one completed Saturday.

Proceedings Below and Appellate Interim Relief

The Guild filed its verified complaint and preliminary-injunction motion on January 5. The City answered and opposed. The parties submitted declarations, municipal enactment materials, site and incident records, stipulated facts, and a chart of alternatives. The district court held a reported hearing on January 19, and the written transcript was filed January 20.

The January 23 memorandum treated the ordinance as content neutral but found the Guild likely to succeed on an as-applied tailoring theory. It identified current program decisions as irreparable harm and concluded that neutral safety authority could remain available. The operative order restrained enforcement of the ordinance against the Guild's announced fairs, preserved general requirements for physical and operational conditions, took effect immediately, and did not state a security amount.

The City moved in the district court for a stay on January 26. The Guild responded the next day, the City replied January 28, and the district court denied relief that day. The City then filed its notice of appeal. After appearances and disclosures were entered, the City made a Rule 8 motion here on February 2. The Guild opposed on February 4 and the City replied on February 5.

This Court denied appellate stay relief on February 6. It found district-first practice satisfied, recognized substantial Rule 65 specificity and security questions, and concluded that the City had not met the stay factors. The preliminary injunction therefore remains operative while the appeal proceeds.

Issues Proposed for Review

The City expects to present whether the district court applied the correct First Amendment tailoring analysis to a content-neutral permit process for scheduled presentations at recurring public events. The appeal will address the evidentiary fit among the forty-five-day filing period, identification and short-topic fields, fixed event charge, per-presenter increment, late-change procedure, and the City's documented operational interests.

The City also expects to ask whether the preliminary injunction complies with Federal Rule of Civil Procedure 65(d). The operative paragraph restrains the named ordinance as a whole while the memorandum preserves several categories of neutral authority and permits collection of operational information. The City contends the acts prohibited should be described more precisely for officials and persons receiving notice.

A further issue is whether the district court was required to make an express security determination under Rule 65(c) and what relief follows from the omission. The City does not contend that a security defect necessarily requires elimination of every interim protection. It preserves the argument that the order as entered cannot remain uncorrected.

The City seeks reversal or vacatur of the preliminary injunction, or alternatively a limited remand for a specific operative order and supported security determination. These requested dispositions concern preliminary administration only. The City does not ask this Court to enter final judgment on the facial or as-applied claims, award damages, or resolve a permanent remedy on the present interlocutory record.

Record, Related Cases, and Certifications

The district clerk has certified the record for this appeal as complete through February 9. The January 19 preliminary-injunction hearing is the only reported proceeding relevant to the appealed order, and its written transcript is already included. The City does not request an additional transcript. The record also contains the complete district-stay sequence and the January 29 notice of appeal.

Counsel identifies no other appeal involving this injunction, no prior appellate decision in this litigation, and no pending proceeding requiring consolidation. The underlying district action remains open. The City is unaware of a bankruptcy, criminal matter, administrative appeal, or state proceeding that would affect this Court's schedule or party alignment.

The recurring calendar supports orderly expedition. The February 14 date is imminent, but denial of the appellate stay leaves the current injunction in place for that event. Later fairs on April 11, June 13, August 8, October 10, and December 12 keep the preliminary issues consequential beyond one day. The City will comply with governing orders while pursuing review.

Municipal Appellate Counsel certifies that this statement was filed and served electronically on February 9, 2026; that its jurisdictional dates were checked against the certified district docket; and that the related-case and transcript responses are accurate after reasonable inquiry. The City will supplement any answer that becomes materially incomplete. This statement contains no request to reconsider the February 6 stay denial.